

Health and Safety Management of Subcontractors

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1. Objective

The objective of this document is to make the evaluation, selection, monitoring and control of Subcontractors more efficient, to improve their health and safety performance and to contribute to reducing the severe and HiPo events on our Projects.

To this aim, BYTP defines a process, in parallel with the Procurement process, to ensure that :

- Subcontractors will fulfil the H&S requirements of BYTP/Entities/projects
- Project will clearly define the requirements to be fulfilled by the Subcontractors before they are issued to potential tenderers
- Subcontractors are H&S evaluated based on their past experience with BYTP and/or based on specific evaluation actions during the tender stage
- The contract clauses, generic and specific ones, are reviewed prior to award
- Project will monitor and evaluate the continuous ability of the Subcontractors to fulfil the H&S requirements during the execution of their works
- Subcontractors are evaluated on their Health and Safety performance at the end of their works

This process is applicable during Bid/Flying Start phases (refer to sections 2 to 8 of this document) and during Project Execution phase (refer to sections 2 to 13 of this document).

2. Scope

This procedure applies to all BYTP sites, projects and worksites.

In the case of Joint ventures (JV), Consortiums or co-contracting operations, the project-specific procedure must include, as a minimum, the provisions set out in this document as well as any non-conflicting provisions of our partners. It is important to have all aspects adopted at the start of the project either prior to or as a minimum at Health and Safety kick-off meetings.

If any part of this document conflicts with a local requirement and is less stringent than that local regulation, then the corresponding local regulation(s) apply.

The implementation of this procedure involves the collection, recording, processing or storage of sensitive personal data within the meaning of the GDPR. Each subsidiary/entity/project ensures that this procedure is implemented in compliance with the applicable local regulations in this area.

The following Subcontractors are excluded from the application of this procedure. Nevertheless, they will have to comply with the project specific procedure relative to management of Subcontractors :

- Suppliers of goods and equipment with no anticipated works to be conducted at Project's sites (installation, assembly, commissioning...)

- Suppliers of construction plants with or without operators (purchase or rental)
- Consultancy activities
- Subcontractors/Service providers not exposed to worksites risks
- Subcontractors whose works do not expose their personnel to major risks activities or lethal hazards (e.g. confined space entry, diving)
- Subcontractors executing their works in their own facilities outside the project's worksites boundaries

3. Reference documents

- BYCN memo Management of Subcontracted Works dated 22/05/2025
- Purchase_Procedure_V1 dated 08/2023

4. Definitions and abbreviations

- BYTP Bouygues Travaux Publics
- BYCN Bouygues Construction
- H&S Health & Safety
- S/C Subcontractor

Terme / Abbreviation	Description
Subcontractor (S/C)	Any company or individual contracted by the Project to perform a specific scope of work or service on the project. It includes Subcontractors of Subcontractors

5. Roles and responsibilities

5.1. BYTP Health & Safety Department

- Ensures the update of this procedure in compliance with BYCN requirements
- Ensures the alignment of this procedure with the BYTP Procurement process

5.2. BID Manager

- Ensures this procedure is implemented on his BID, especially the section relative to the Tender stage (evaluation and pre-selection of a S/C during a BID)
- With the assistance of the H&S person involved in the BID, provides the necessary support to the Tender Procurement Officers in the process of assessing compliance with H&S requirements

5.3. Project Director/Manager

- Ensures this procedure is implemented on his project
- With the assistance of the Project H&S Manager, provides the necessary support to the Project Procurement Officer in the process of assessing compliance with H&S requirements
- Promotes a spirit of collaboration on health and safety issues with Subcontractors
- Organises kick-off meetings with Subcontractors to guarantee clarity regarding H&S subjects and issues
- Schedules and carries out H&S inspections
- Records and monitors behaviours of Subcontractors
- Involves Subcontractor's personnel in project's H&S campaigns
- Monitors the progress of any established corrective actions and ensures their implementation
- Issue stop-work orders when a Subcontractor is observed working in unsafe conditions or in non-compliance with the regulatory/Project H&S requirements
- Decides sanctions against Subcontractors in case of non-compliance with regulatory and contractual H&S requirements
- Appraises the Subcontractors H&S performance at completion of their works and ensures that this appraisal is recorded in dedicated Procurement tools

5.4. Project H&S Manager

- Ensures that all Subcontractors and third-party companies or service providers comply with regulatory and Project-specific occupational Health and Safety requirements
- Appraise Subcontractors during Tender stage and issue his recommendation to the Requisitioner
- Defines specific monitoring actions in case a Subcontractor was evaluated poor on H&S criteria
- Reviews and approve Subcontractor Health and Safety documentation before work begins
- Ensures Subcontractor personnel are informed of site-specific hazards and trained accordingly
- Maintains a centralized reporting structure for all incidents, injuries, and hazards
- Conducts regular inspections and audits of Subcontractor areas and activities
- Ensures Subcontractors' employees understand and integrate the Project's Emergency Response Plan
- Monitors Subcontractor's H&S performance
- Participate to the final H&S appraisal of the Subcontractors

5.5. Requisitioner

- Produces a Purchase Request for subcontracting
- Select Subcontractors based on the recommendation issued by the Procurement Officer
- Drafts the subcontract and manages the relationship with the Subcontractors

- Chair the kick-off meeting with Subcontractors
- Assesses the Subcontractors during the execution of their contract
- Issue the final appraisal of the Subcontractors

A requisitioner can be any department's member requesting a scope to be subcontracted (Technical, Operations, Production, H&S, Quality...)

5.6. Procurement Officer

- Treats Purchase Requests received from Project Requisitioners
- Analyses the need and market and then define the procurement strategy
- Carries out sourcing and qualification
- Consults shortlisted Subcontractors
- Performs the Tender Analysis, negotiates and then makes a procurement recommendation
- Assists the Requisitioner in drafting the subcontract and in his/her relationship with the Subcontractors

Based on the outcomes of the Purchasing Launch Meeting (PLM), the role and responsibilities of the Procurement Officer could be assigned to the Requisitioner.

5.7. Subcontractors

- Remains the ultimate responsible for the health and safety of their employees
- Implement and maintain an internal health and safety program that meets or exceeds project expectations
- Provide qualified and trained personnel, equipment and systems to manage risks associated with their works
- Submit documentation demonstrating compliance and cooperate fully with site inspections and audits conducted by the Project or regulatory bodies
- Provide all necessary PPE, tools and equipment in good working condition
- Promptly report accidents, near misses, unsafe acts and situations and cooperate with investigations
- Ensure prompt close-out of corrective actions following events, inspections and audits
- Ensure their own Subcontractors comply with the same H&S expectations

6. Tender stage

6.1. H&S requirements

The Project H&S Manager defines the list of H&S requirements that shall be communicated to Subcontractors for a given work package. It is composed at least of :

- Project H&S policy
- Project H&S Management Plan
- Project Major Risks and Life Saving rules
- Project Management of Unforeseen situations
- Requirements regarding compliance with International/local H&S certifications
- Any additional H&S requirements specific to the works and risks associated with the Subcontractor's work package

The Project Manager provides the Procurement Officer with the applicable H&S requirements in order to get them included in the procurement package.

6.2. Subcontractors short-list

For a given subcontracted work package and/or for a Purchase Request, the Procurement Officer identifies the Subcontractors that will be part of the Tender shortlist.

The Procurement Officer makes available, when submitting the shortlist to the requisitioner, any existing H&S assessment of the Subcontractors coming from past experience with BYCN/BYTP.

The project H&S Manager will consider this assessment for defining the applicable H&S process during the Tender stage.

6.3. Subcontractor having past experience with BYTP/BYCN

- If a Subcontractor with past experience with BYTP/BYCN has been evaluated positively against H&S criteria*, then this Subcontractor is considered pre-qualified and can be invited for tendering
- If a Subcontractor with past experience with BYTP/BYCN has been evaluated poorly against H&S criteria*, he is flagged as "at operational risks" Subcontractor

* H&S criteria are issued from **ZMMEVAL, Procurement module of SAP** or based on qualitative feedback from past/ongoing projects. A performance is generally considered poor when the score is < average score (refer to Section 13 of the present document)

6.4. Subcontractor with no past experience with BYTP/BYCN

If a Subcontractor has no past experience with BYTP/BYCN, the Project applies the process relative to Subcontractors flagged "at operational risks".

6.5. Process for "at operational risks" Subcontractor

- The Subcontractor can be invited for tendering only if approved by the Project Manager

- If approved for tendering, then a specific actions plan shall be defined to reinforce the appraisal of the Subcontractor during the Tender stage. This plan includes as a minimum :
 - A H&S assessment questionnaire to be added in the tender package
 - If practicable, a project H&S representative conducts a visit and H&S inspection, at a site where the Subcontractor executes works
 - A meeting with the Subcontractor in order to appraise its maturity in H&S and to clarify and reinforce Project's expectations

An example of H&S questionnaire is provided in the document **H&S questionnaire for Subcontractors BYTP-H&S-INF-2122**

7. Selection stage

The Procurement Officer established a *Tender Analysis Sheet* which includes the H&S score of each Subcontractors :

- Based on their past scoring for positively known Subcontractors
- Based on the feedback received from the Project H&S Manager for "at operational risks" Subcontractors (following analysis of the H&S questionnaire, Subcontractor's audit, Site's inspection...)

The decision to place an order to a Subcontractor which score is poor against H&S criteria shall be approved by the Project Manager.

If a Subcontractor, assessed poor against H&S criteria, has been awarded for a scope of works, then the Project Manager and the Project H&S manager :

- Request the Subcontractor to prepare an Improvement Plan
- Defines project strategy and actions to ensure that the preparedness, oversight and performance monitoring of the concerned Subcontractor will be reinforced

8. Subcontract issue stage

The subcontract placed with the Subcontractors shall include :

- BYTP/Entities generic H&S requirements
- Major Risks and Life Saving Rules
- Project H&S specific and applicable requirements (H&S management Plan, Management of Unforeseen Situations plan, Lifting Management Plan, Traffic Management Plan, Temporary Works Management Plan...etc)
- Just Culture clauses, i.e. penalties and bonus associated with H&S indicators

9. Kick-off meeting

The Requisitioner in charge will convene a Kick-off Meeting with the Subcontractor at least a week before the work is due to commence on site.

The Project H&S Manager is invited to attend the Kick-off meeting. Based on the scope of works/risks level and his appraisal of the H&S maturity of the Subcontractor, he can decide to delegate his role to the Requisitioner in charge.

The Subcontractor shall be represented during this Kick-off meeting by the personnel due to manage the works and not only by head office personnel, meaning as a minimum :

- Subcontractor's project/construction manager
- Subcontractor's project H&S manager or a member of the Subcontractor's project team accountable for H&S

The main objectives of this meeting are :

- To review and agree on the scope of works
- To remind the obligations of the Subcontractor's and its employees
- To ensure the Subcontractor knows and understands the contractual H&S requirements (training, competencies, risk assessment, tasks briefing, incident management, inspection process, emergency preparedness and response...etc)
- To communicate worksite's identified hazards and anticipated ones
- To identify overlapping or interfering works
- To review the Subcontractor's proposed methodologies of work and associated risk controls
- To challenge the Subcontractor's methodologies if not compliant with the project H&S requirement and/or if revealing insufficiently controlled risks

10. Arrival at site

Before mobilization on site, all Subcontractor personnel must participate in the full project orientation program administered by the Project.

This includes, at minimum:

- Health and safety induction
- Emergency response protocols
- Site logistics and access control rules
- Be registered in the project's tracking system for site access (e.g., RFID badge or equivalent)
- Drug and Alcohol testing as per the applicable protocol

No Subcontractor worker may access the worksite unless all onboarding requirements are complete and verified.

11. First days of work

Once the Subcontractor is mobilized on site, a H&S inspection is organized the very first day of work, to ensure works are carried out in accordance with the contractual H&S requirements and with the points raised during the Kick-off meeting.

The Subcontractor is required to stop immediately all high-risk activities assessed non-compliant with the project H&S requirements and to implement corrective measures prior to be authorized to resume the tasks.

The Subcontractor is required to set-up corrective actions plan to close-out, in reasonable and agreed delays, all observations raised in addition to the above.

12. During the works

12.1. Monitoring of Subcontractors

Subcontractors are subject to monitoring and evaluation through project-established safety oversight mechanisms.

This includes:

- Periodic H&S site inspections
- Ongoing field-level observations, walkthroughs conducted by Project' H&S, Production and Management representatives (together or separately)
- Reporting of non-conformances or unsafe behaviours through established site observation and events reporting tools

The Subcontractor performance in audits, events history and responsiveness to corrective actions will be used to assess its suitability for ongoing participation in project work scopes.

12.2. Just & Fair Culture

BYTP encourages a proactive, preventive and coaching-based approach but will not hesitate to take formal actions to protect workers and the respect of the Project's Health and Safety Culture.

To maintain a safe and compliant work environment, the Project reserves the right to take enforcement actions toward Subcontractors who do not uphold the Project's H&S standards, including:

- Temporary suspension of site access for Subcontractors who fail to comply with the H&S regulation, until the situation is recovered
- Temporary suspension of part/all Subcontractor's employees who fail to implement effective corrective actions after severe accidents or HiPo events, until the actions are implemented
- Termination of Subcontractor's contract for severe or repeated H&S breaches
- Temporary suspension of site access of any Subcontractor's employee who fails to follow the Project Safety Induction

- Revocation from site of any Subcontractor's employee who refuses to apply the Project Drug & Alcohol protocol
- Revocation from site of any Subcontractor's employee who voluntarily engages in unsafe behaviour, violates critical safety rules, poses a hazard to themselves or others or degrades equipment

12.3. Prevention and awareness

Subcontractors are fully integrated in BYTP/Entities/Project pro-active and preventive actions such as, but not limited to :

- H&S steering committee meetings
- ToolBox Talks
- H&S Prevention campaigns
- Safety Culture coaching and sharing
- Site specific trainings
- Recognition program
- Safety stand-down
- Emergency drills
- Safety Days and H&S milestones celebrations

13. Subcontractor appraisal & feedback

At the completion of the Subcontractor's work, the Procurement Manager will organise an assessment of the Subcontractor's performance to be recorded in **ZMMEVAL, Procurement module of SAP**.

The H&S performance of the Subcontractor is assessed by the Project H&S Manager/Requisitioner and is based on specific criteria/sub-criteria.

These criteria and sub-criteria are listed in the document **H&S Assessment criteria for Subcontractors BYTP-H&S-INF-2123**.

The result of this evaluation is recorded in **ZMMEVAL, Procurement module of SAP** and detailed in the Project H&S End of Activity Report. It will be used for any future tendering/collaboration with the same Subcontractor.

In case of long duration subcontract, intermediate performance review and record can be conducted before the completion of the works, in order to provide an assessment for the tenders ongoing on other projects with the same subcontractor.

14. List of appendices

- Appendix 1 - H&S questionnaire for Subcontractors (BYTP-H&S-INF-2122)
- Appendix 2 - H&S Assessment criteria for Subcontractors (BYTP-H&S-INF-2123)